

Summary adjudication is **DENIED**.

6, 7, 8, 9. Whistleblower Retaliation (Lab. Code 6310, 6311, 1102.5, 98.6, 232.5)

Defendant groups the whistleblower retaliation claims together, and argues that these causes of action require Plaintiff to show that he engaged in protected activity, was subjected to an adverse employment action, and a causal link between the two. *St. Myers v. Dignity Health* (2019) 44 Cal.App.5th 301. Defendant again argues that these causes of action fail because Plaintiff was not subjected to an adverse employment action and that there is no evidence it was because he complained about the odors. The Court's analysis on those arguments applies here as well and is incorporated by reference. Summary adjudication is **DENIED**.

10. Cause of Action Dismissed by Plaintiff

11. Intentional Infliction of Emotional Distress

Although direct common law liability is barred, a public entity may be held vicariously liable for IIED under Cal Gov Code § 815.2. *Lawson v. Superior Court* (2010) 180 Cal. App. 4th 1372, *Lugtu v. California Highway Patrol* (2001) 26 Cal. 4th 703. This statute provides that a public entity is liable for an injury proximately caused by an act or omission of an employee within the scope of their employment if the employee's conduct would have given rise to a cause of action against that employee individually. Cal Gov Code § 815.2; *Lugtu v. California Highway Patrol*, *supra*, 26 Cal. 4th 703.

Here, there are triable issues regarding Plaintiff's supervisor's actions considering the Plaintiff's disability. The jury must weigh the evidence regarding whether Miles's conduct, considering the totality of circumstances (e.g. Plaintiff's known increased sensitivity to fumes, need for "sameness," and physical and emotional symptoms) rose to the level of extreme and outrageous behavior. Summary adjudication is **DENIED**.

12. Cause of Action Dismissed by Plaintiff

Defendant's Motion for Summary Judgment, or in the alternative Summary Adjudication is **DENIED**. Plaintiff's proposed order will be executed.

**LAURENCE VS. HOLT OF CALIFORNIA**

**CASE NUMBER: 25CV-0207217**

**Tentative Ruling on Motion for Summary Judgment or Summary Adjudication:** Plaintiff Christopher Laurence was employed as a union field mechanic at Defendant Holt of California's Redding location from January 9, 2024 through May 13, 2024. Plaintiff filed his PAGA Complaint on March 11, 2025 alleging 8 causes of action ("PAGA claims"). Plaintiff filed a separate individual Complaint on June 17, 2025, alleging the same 8 causes of action ("Individual Claims"). The actions were consolidated by Court Order on September 15, 2025.

Request for Judicial Notice. Defendant requests the court take judicial notice of the following:

1. Plaintiff's PAGA Notice filed with the LWDA 12/18/24
2. Plaintiff's PAGA Complaint filed in this Court 3/11/25

3. Plaintiff's Individual Complaint filed in this Court 6/23/25 and consolidated with the  
PAGA Complaint on 9/15/25
4. Campo's PAGA Notice 6/14/22
5. Campo's FAC filed in El Dorado 10/13/22
6. Final Approval Order for PAGA Settlement dismissing PAGA claims with prejudice  
2/2/24
7. Joint Stipulation of PAGA Settlement and Release resolving and dismissing PAGA  
claims with prejudice in El Dorado 12/6/23
8. MOU re PAGA Settlement and Release executed by Holt 2/6/24
9. Operating Engineers Local Union No. 3 Collective Bargaining Agreement

Plaintiff objects to the Request as to Exhibits 6, 7, and 8 to the extent the Defendant asks the Court to accept the truth, interpretation, date calculation, scope, legal effect or allege preclusive effect of the documents. Defendant's requests for judicial notice 1-8 are granted, and 9 is denied.

The court has the discretion to take judicial notice of the records of any court of California, or any court of record of the United States or of any other state. Cal. Evid. Code § 452. This discretionary authority encompasses court orders, judgments, findings of fact, and conclusions of law within those court records. *Kilroy v. State of California* (2004) 119 Cal. App. 4th 140. When a prior court order has a direct legal consequence in the current action—such as establishing the existence of a prior judgment, an appellate ruling, or a specific legal order—the court may properly take judicial notice of the order to prove that the court made those orders or reached those results. *Ibid.*

Objections to Evidence. Plaintiff's Objections to Evidence 1-23, 28-33 are overruled. Plaintiff's Objections to Evidence 24-27 are sustained. Defendant's Objections to Evidence 1-12 are overruled, numbers 13 and 14 are sustained.

On August 13, 2026, Defendant filed a Compendium of Evidence for Reply in Support of Motion for Summary Judgment. This 470 pages of new evidence consists of a Supplemental Declaration of Hallie Spaulding, as well as voluminous materials not presented with the original motion. CCP 437c(b)(4) provides in relevant part that the reply shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers. "[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case ..." and if permitted, the other party should be given the opportunity to respond." *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-1538. Plaintiff objects to the Court's consideration of the new evidence.

Additionally, on August 17, 2026 Plaintiff filed: a Response to Defendant's Objections to Evidence; Objections to Defendant's Evidence; and Objections to Defendant's Response to Plaintiff's Evidentiary Objections. On August 19, 2026, Defendant filed further Objections to Plaintiff's August 17, 2026 filings. Defendant argues these filings are improper and asks that the Court not consider them.

Without seeking leave of court, both sides have filed papers which are not contemplated by the Code of Civil Procedure and the California Rules of Court. The Court finds no good cause to consider these late, improper, and voluminous filings. Consideration of these filings would be prejudicial to each side, because each party lacks the opportunity to properly respond in violation

of due process rights.

Standard on Summary Judgment. The party moving for summary judgment bears the initial burden to make a prima facie showing that there are no triable issues of material fact. *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850. There is a genuine issue of material fact only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* at 845. A defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action. Once the defendant has met that burden, the burden shifts to the plaintiff to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto. CCP § 437c(p)(1). The plaintiff or cross-complainant shall not rely upon the allegations or denials of its pleadings to show that a triable issue of material fact exists but, instead, shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action or a defense thereto. CCP § 437c(p)(2).

In ruling on a motion for summary judgment, the Court must consider not only the direct evidence presented, but also reasonable inferences to be drawn therefrom, and must view the evidence and inferences “in the light most favorable to the opposing party.” CCP § 437c(c); *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 843. “Because summary judgment is a drastic measure that deprives the losing party of trial on the merits, it may not be invoked unless it is clear from the declarations that there are no triable issues of material fact.” *Johnson v. Superior Court* (2006) 143 Cal.App.4th 297, 304. “A summary judgment motion is directed to the issues framed by the pleadings. Those are the only issues a motion for summary judgment must address.” *Van v. Target Corp.* (2007) 155 Cal. App. 4th 1375, 1387.

Defendant moves for summary judgment or summary adjudication of the following issues: 1) Plaintiff’s PAGA theories fail as a matter of law because Plaintiff lacks standing, 2) Plaintiff is not similarly situated to the PAGA class he purports to represent, 3) there are no triable issues of material fact as to Plaintiff’s PAGA claims or the individual claims, therefore summary judgment is appropriate as a matter of law.

#### Issue 1: Whether Plaintiff’s PAGA theories fail because Plaintiff lacks standing.

Defendant argues that Plaintiff is precluded from asserting his PAGA claims by the settlement in *Campo v. Holt of California*, El Dorado Superior Court Case No. 22CV1415 (“Campo action”), and because Plaintiff suffered no Labor Code violations not subsumed by the Campo action.

The judgment in a PAGA action is binding not only on the named employee plaintiff but also on government agencies and any aggrieved employee not a party to the proceeding. *Arias v. Superior Court* (2009) 46 Cal.4th 969, 985.

The Campo Settlement defined aggrieved employees as “all nonexempt employees employed by Defendant in California any time between June 14, 2021 through 60 days after execution of the Memorandum of Understanding (MOU). (UF 6-8, 41) The MOU was executed February 6, 2024, therefore the Campo PAGA period runs from June 14, 2021 through April 6, 2024. (Decl. Spaulding Ex. 8) Plaintiff here seeks PAGA penalties on the same basis as Campo. (Decl. Spaulding Ex. 4-7) The El Dorado Superior Court’s Order Approving PAGA Settlement dated

February 2, 2024 in the Campo action is binding not only on the Plaintiff in this action but also on the LWDA and any aggrieved employee not a party to this proceeding. (Decl. Spaulding Ex. 5) Plaintiff's employment ended May 8, 2024. Therefore, the only period Plaintiff has PAGA standing is from April 7, 2024 to May 8, 2024.

Defendant argues that Plaintiff does not have standing for that approximately one-month period, because he cannot demonstrate that he suffered any of the violations alleged during that period. Labor Code 2699(c)(1) requires that Plaintiff "personally suffered each of the violations alleged during the [PAGA] period." As described in more detail in section 3, below, the Court finds that there are triable issues of material fact with respect to whether Plaintiff suffered any of the violations alleged during that period. (UF 22, 23, 29, 30, 43, 44, et al.)

Summary adjudication is **GRANTED** as to Plaintiff's PAGA claims for the period running from June 14, 2021 through April 6, 2024 only, because they are precluded by the Settlement and Release in Campo v. Holt of California 22CV1415. Summary adjudication is **DENIED** as to the Plaintiff's PAGA claims for the period of Plaintiff's employment thereafter.

Issue 2: Whether Plaintiff is similarly situated to the PAGA class.

Defendant argues that Plaintiff is a member of the Operating Engineers Local 3 Union, and his employment with Holt is subject to a Collective Bargaining Agreement which subjects him to different terms of employment, including the payment of wages that are subject to the FAA. The CBA therefore renders him dissimilar to, and inadequate to represent any non-union employees, which comprise 60% of Holt's workforce. Defendant argues Plaintiff therefore cannot proceed on behalf of non-union hourly employees.

"There are only two requirements for PAGA standing. "The plaintiff must allege that he or she is (1) 'someone "who was employed by the alleged violator"' and (2) someone "against whom one or more of the alleged violations was committed."' (*Adolph, supra*, 14 Cal.5th at p. 1120.)" *State ex rel. Balderas v. Fresh Start Harvesting, Inc.* (2024) 101 Cal.App.5th 533, 538-539. PAGA contains no specific class certification requirements, such as typicality. *Brown v. Ralphs Grocery Co.* (2011) 197 Cal.App.4th 489, 501. Plaintiff's status as a union member does not require that his action proceed only on behalf of the Defendant's unionized employees. The request for summary adjudication on this issue is **DENIED**.

Issue 3: Whether triable issues of material fact remain as to Plaintiffs 8 Individual Causes of Action and 8 PAGA causes of action.

Code of Civil Procedure section 437c(b)(1) provides in relevant part that "the supporting papers shall include a separate statement setting forth plainly and concisely all material facts that the moving party contends are undisputed. Each of the material facts stated shall be followed by a reference to the supporting evidence. The failure to comply with this requirement of a separate statement may in the court's discretion constitute a sufficient ground for denying the motion."

California Rule of Court 3.1350(d)(1) provides that the Separate Statement of Undisputed Material Facts in support of a motion must separately identify: (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion; and (B) Each supporting material fact claimed to be without dispute with respect to the cause of action, claim

for damages, issue of duty, or affirmative defense that is the subject of the motion.

Defendant's Separate Statement of Undisputed Material Facts does not comply with the CCP and CRC. Instead, it lists 56 Undisputed Material Facts "common to all causes of action." Failure to comply with this rule constitutes ground for denial at the court's discretion. *Fleet v. CBS* (1996) 50 Cal.App.4th 1911, 1916, fn. 3. The Court declines to exercise its discretion to deny the motion on these grounds.

1. and 2. Failure to Provide Meal and Rest Periods, in Violation of Labor Code 512 and 226.7

Defendant argues that meal and rest periods were provided, and that Plaintiff admits that he was in control of his time and trained to take compliant meal and rest breaks. (UF 53) Holt did not interrupt his breaks, or if it did, Plaintiff elected to by choice. He never told anyone at Holt when he was on a break and voluntarily took calls without knowledge from Holt. (UF 51) Defendant argues Plaintiff is responsible for any failures to comply with Holt's compliant policies. Plaintiff has shown triable issues of material fact remain regarding unpaid meal or rest premiums and interrupted breaks. (AMF 12-14) Summary adjudication is **DENIED**.

4. and 5. Failure to Pay Minimum and Overtime Wages

Defendant argues that Plaintiff was always paid at the applicable minimum wage rate or higher (UF 29, 30, 43) and that Plaintiff was properly paid double minimum wage and overtime. (UF 22, 29, 30, 44). Plaintiff has shown triable issues of material fact remain regarding rounding of time entries and off-the-clock work. (UMF 43) Summary adjudication is **DENIED**.

8. Failure to Reimburse Expenses in Violation of Labor Code 2802

Defendant argues that its written policies comply with Labor Code 2802, and Plaintiff was provided all tools and technology needed to complete any work task, and provided a phone, laptop and gas card. (UF 28) Plaintiff has shown triable issues of material fact remain regarding whether Plaintiff supplied his own and tools without reimbursement, and whether he had to use his personal phone because the company issued phone didn't work in rural areas. (AMF 14, 15) Summary adjudication is **DENIED**.

3. Failure to Provide Complete and Accurate Wage Statements Labor Code 226; 6. Failure to Pay Wages During Employment; and 7. Failure to Pay all Wages Due to Discharged and Quitting Employees

Defendant characterizes these remaining causes of action as derivative claims that fail because the underlying claims fail. The Court has denied summary adjudication as to the underlying claims as detailed above. Therefore, the derivative claims survive as well. Summary adjudication is **DENIED**.

Defendant's Motion for Summary Judgment is **DENIED**. Summary adjudication is **GRANTED** in favor of Defendant as to Plaintiff's PAGA claims only for the period running from June 14, 2021 through April 6, 2024, because they are precluded by the Settlement and Release in *Campo v. Holt of California*. Summary adjudication of the remaining issues is **DENIED**.